

UGOVOR O POSREDOVANJU U ZAKUPU NEPOKRETNOSTI

Zaključen dana _____ 20__ . godine u Beogradu, između:

Privrednog društva Concept Real Estate doo Beograd, Majke Jevrosime 47, Matični broj: 22047825, PIB: 114618627, Reg.br. 1910, koje zastupa direktor Jasna Bajić-Ljubičić, kao **POSREDNIKA** (u daljem tekstu **Posrednik**)

i _____ iz _____, ul. _____, JMBG _____, lk _____ br. _____ izdata od _____ kao **NALOGODAVCA** (u daljem tekstu **Nalogodavac**)

I
Predmet ovog Ugovora je regulisanje međusobnih odnosa između **POSREDNIKA** i **NALOGODAVCA**, vezanih za zakup nepokretnosti, _____ površine _____, po strukturi _____, na _____ spratu, označen brojem _____, u Beogradu, ulica _____ br. _____ u stambenom objektu sagrađenom na katastarskoj parceli _____ KO _____, a pod uslovima i na način definisan ovim Ugovorom.

Cena

II

NALOGODAVAC određuje početnu cenu zakupa u iznosu od _____ **EUR** na mesečnom nivou po kojoj **POSREDNIK** može da vrši oglašavanje nepokretnosti iz člana I ovog Ugovora. Promena cene dogovoriće se usmeno/pismeno ili elektronskim putem.

Obaveze NALOGODACA

III

BROKERAGE AGREEMENT

Concluded on _____ in Belgrade, between:

Company Concept Real Estate doo Belgrade, No. 47 Majke Jevrosime St. , ID number: 22047825, PIB: 114618627, Reg. no. 1910, represented by director Jasna Bajić-Ljubičić as a **BROKER** (hereinafter referred to as **Broker**)

And _____ from _____, address: _____, _____ as a **PRINCIPAL** (hereinafter referred to as **Principal**)

I
The subject of this Agreement is to regulate the mutual relations between the **BROKER** and the **PRINCIPAL**, related to the lease of a real estate property, _____ with an area of _____, with a structure of _____, on the _____ floor, marked with number _____, located in Belgrade, at _____ Street No. _____, in a residential building constructed on cadastral parcel number _____ in the cadastral municipality of _____, under the terms and conditions defined in this Agreement.

Price

II

PRINCIPAL shall determine the initial leasing price amounting to _____ EUR on a monthly basis at which **BROKER** may advertise the real estate from Article I of this Agreement. Price change shall be agreed verbally/in written form or by e-mail.

Obligations of the PRINCIPAL

III

NALOGODAVAC potpisivanjem ovog ugovora poverava izdavanje svoje nepokretnosti **POSREDNIKU** i preuzima sledeće obaveze:

da **POSREDNIKU** prezentuje svu dokumentaciju kojom dokazuje svoje vlasništvo na predmetnoj nepokretnosti (projektna, tehnička, urbanistička, građevinska, pravna) kao i da fotokopije istih preda **POSREDNIKU**;

da jasno i nedvosmisleno saopšti **POSREDNIKU** svoje uslove izdavanja nepokretnosti;

da omogući **POSREDNIKU** da u prisustvu **NALOGODAVCA** ili sa njegove strane ovlašćenog lica, licima zainteresovanim za eventualni zakup, predmetnu nepokretnost pokaže, kao i da sarađuje sa **POSREDNIKOM** na svakom drugom planu, a sve u cilju uspešne realizacije Ugovora o zakupu;

obavestiti **POSREDNIKA** o svim promenama u vezi sa posredovanim poslom, a posebno o promenama u vezi sa pravima na nepokretnosti, rokovima i cenom, a sve u roku od tri dana od dana nastale promene;

da ne menja uslove zakupa, (posebno ne cenu i rokove) ako su uslovi već predloženi potencijalnom zakupcu;

NALOGODAVAC je saglasan da se predmetna nepokretnost fotografiše, a fotografije objave na posrednikovom sajtu i ostalim portalima.

Obaveze POSREDNIKA

IV

POSREDNIK, kao Preduzeće specijalizovano za posredovanje u zakupu i prometu nepokretnosti, se obavezuje da sa pažnjom dobrog privrednika preduzme sve potrebne radnje u cilju što efikasnijeg zakupa nepokretnosti koja je u vlasništvu **NALOGODAVCA**, pod uslovima koje je on postavio.

POSREDNIK se posebno obavezuje da u ime **NALOGODAVCA**:

nastojati da nađe i dovede u vezu s nalogodavcem lice radi zaključivanja posla koji je predmet ugovora o posredovanju i zakazuje prezentaciju predmetne nepokretnosti;

dati **NALOGODAVCU** objektivno mišljenje o ceni nepokretnosti ili iznosu zakupnine nepokretnosti u skladu sa njenim karakteristikama, prilikama na tržištu, kao i drugim relevantnim okolnostima;

učestvuje u pregovorima u ime **NALOGODAVCA** uz nastojanje da dođe do zaključenja posla;

redovno obaveštava **NALOGODAVCA** o svim preduzetim aktivnostima koje su predmet ovog ugovora i u vezi su sa preuzetim obavezama koje iz njega proizilaze;

By signing this Agreement, **PRINCIPAL** entrusts leasing of his/her real estate to **BROKER** and take the following responsibilities:

to provide **BROKER** with all documents proving his/her ownership of the subject real estate (design, technical, urban planning, construction, legal documents), as well as to hand over photocopies of these documents to **BROKER**;

to communicate his/her conditions for the real estate leasing to **BROKER** clearly and unambiguously;

to enable **BROKER** to present the subject real estate to persons interested in leasing, in the presence of **PRINCIPAL** or his/her authorized representative, as well as to cooperate with **BROKER** at each level in order to implement the Lease Agreement successfully;

to inform **BROKER** on all changes relevant for brokerage, especially on changes regarding property rights over the real estate, terms and price, within three days from the date of change;

not to change lease conditions (especially price and terms) if these conditions have already been communicated to a potential Lessee ;

PRINCIPAL shall allow taking photos of the subject real estate and uploading of these photos on **BROKER's** website and other portals .

Obligations of the BROKER

IV

The **BROKER**, as a company specializing in real estate leasing and sales, undertakes to take all necessary steps with the care of a good businessperson to lease the real estate property owned by the **PRINCIPAL** as efficiently as possible, under the conditions set by the **PRINCIPAL**. The **BROKER** specifically undertakes to act on behalf of the **PRINCIPAL** to:

Seek out and introduce to the **PRINCIPAL** a person for the purpose of concluding a transaction that is the subject of the brokerage agreement and to schedule a presentation of the property;

Provide the **PRINCIPAL** with an objective opinion on the property's price or rental amount in accordance with its characteristics, market conditions, and other relevant circumstances;

Participate in negotiations on behalf of the **PRINCIPAL**, striving to reach an agreement;

Regularly inform the **PRINCIPAL** of all activities undertaken that are the subject of this Agreement and related to the obligations arising therefrom;

Treat as a business secret all information entrusted to it, with an obligation not to disclose to third parties any information entrusted to it, except for information

kao poslovnu tajnu čuva sve podatke koji su mu povereni uz obavezu da trećim licima ne saopštava podatke koji su mu povereni, izuzev podataka potrebnih za obavljanje posredničkog posla, kao i u slučaju da bilo koji državni organ po službenom nalogu zatraži podatak od **POSREDNIKA**;

svu dokumentaciju koju je preuzeo od **NALOGODAVCA** čuva do završetka posla;

pruža punu pravnu sigurnost u realizaciji Ugovora o zakupu;

ima obavezu vođenja tačne i precizne evidencije zakupaca kojima prezentuje predmetnu nekretninu;

nedvosmisleno utvrdi identitet potencijalnih zakupaca (kojima u cilju davanja pod zakup pokazuje predmetnu nepokretnost) i to uvidom u lične isprave (lična karta, putna isprava i drugo) te da od pomenutih dobije svojeručno potpisanu izjavu o gledanju stana na za to unapred pripremljenom evidencionom dokumentu;

obezbeđuje potpunu diskreciju vodeći računa o maksimalnoj zaštiti **NALOGODAVCA**.

Ostale odredbe

V

POSREDNIK ima pravo na naknadu, posredničku proviziju za izvršeno posredovanje u zakupu predmetne nepokretnosti.

NALOGODAVAC je saglasan da **POSREDNIKU** isplati posredničku proviziju u iznosu od **50%** od ugovorene mesečne zakupnine, kao naknadu posrednika za obavljene usluge posredovanja. Provizija će biti isplaćena u nakon potpisivanja Ugovora o zakupu predmetne nepokretnosti i isplate depozita i zakupnune. U slučaju da nakon isteka/raskida predmetnog Ugovora **NALOGODAVAC** zaključi ugovor sa licem koje je obezbedio **POSREDNIK** tokom važenja predmetnog ugovora, **POSREDNIK** će imati pravo na proviziju u roku od šest meseci od dana prestanka ovog Ugovora.

U slučaju da **NALOGODAVAC** bez prisustva predstavnika **POSREDNIKA** i njegovog znanja, zaključi Ugovor sa licem koje mu je **POSREDNIK** doveo kao potencijalnog zakupca ili licima koja su bila sa njim na razgledanju, dužan je nadoknaditi **POSREDNIKU** posredničku proviziju u celosti. U skladu sa pomenutim, **NALOGODAVAC** preuzima na sebe obavezu da ukoliko zaključi predugovor ili ugovor o zakupu nepokretnosti bliže opisane u Članu 1 ovog ugovora mimo znanja i učešća **POSREDNIKA** o tome obavesti istog, te da mu u tom smislu u najkraćem roku ima dostaviti kopiju dokumenta o predmetnom pravnom poslu.

necessary to perform the brokerage service, as well as in the event that any state authority requests information from the **BROKER** by official order;

Keep all documentation received from the **PRINCIPAL** until the completion of the transaction;

Provide full legal security in the execution of the Lease Agreement;

Maintain accurate and precise records of tenants to whom the property is presented;

Clearly verify the identity of potential tenants (to whom the property is shown for the purpose of leasing) by inspecting their personal identification documents (identity card, passport, etc.) and obtaining a handwritten statement from them regarding the viewing of the property on a form prepared for this purpose in advance; Ensure complete discretion, taking care to protect the **PRINCIPAL** to the fullest extent.

Other Provisions

V

The **BROKER** is entitled to a fee, a brokerage commission, for the brokerage service performed in leasing the subject real estate.

The **PRINCIPAL** agrees to pay the **BROKER** a brokerage commission of 50% of the agreed monthly rent, as compensation to the **BROKER** for the brokerage services performed. The commission will be paid after the signing of the Lease Agreement for the subject real estate and the payment of the deposit and rent. In the event that, after the expiration/termination of this Agreement, the **PRINCIPAL** enters into an agreement with a person provided by the **BROKER** during the validity of this Agreement, the **BROKER** shall be entitled to a commission within six months from the date of termination of this Agreement.

In the event that the **PRINCIPAL**, without the presence of a representative of the **BROKER** and without his/her knowledge, enters into an Agreement with a person whom the **BROKER** has brought as a potential tenant or with persons who were with him/her on the viewing, he/she shall be obliged to reimburse the **BROKER** the brokerage commission in full. In accordance with the foregoing, the **PRINCIPAL** undertakes to inform the **BROKER** if he/she concludes a preliminary agreement or a lease agreement for the real estate described in Article 1 of this Agreement without the knowledge and participation of the **BROKER**, and to provide him/her with a copy of the document on the legal transaction in question as soon as possible.

VI

VI

NALOGODAVAC jemči **POSREDNIKU** da je predmetna nepokretnost isključivo njegovo vlasništvo. **NALOGODAVAC** dalje jemči **POSREDNIKU** da na predmetnoj nepokretnosti ne postoje prava trećih lica kojima se umanjuju, ograničavaju ili isključuju buduća stečena prava zakupca izuzev ograničenja (u slučaju da ih ima) koja su navedena u predlogu ugovora koje je **POSREDNIK** dužan prikazati potencijalnom Zakupcu.

VII

POSREDNIK ne može garantovati **NALOGODAVCU** uspešnu realizaciju zakupa predmetne nepokretnosti u određenom roku, naročito u uslovima kada **NALOGODAVAC** svojevorno određuje cenu zakupa po kojoj želi da ista bude nuđena na tržištu potencijalnim zakupcima. **NALOGODAVAC** i **POSREDNIK** su saglasni da dinamiku i brzinu davanja u zakup predmetne nepokretnosti mogu usloviti i faktori na koje ni **NALOGODAVAC** ni **POSREDNIK** ne mogu direktno uticati.

VIII

Ovaj ugovor se zaključuje na **neodređeno vreme**, a njegova važnost prestaje zaključenjem pravnog posla za koji je ugovor sačinjen ili otkazom. Svaka od strana ima pravo na otkaz ugovora. Otkazni rok je **30 dana** i on se mora dati pismenim putem ili u elektronskoj formi u skladu sa zakonom.

IX

Ugovarači su saglasni da u realizaciji ovog Ugovora postupaju i međusobno sarađuju u dobroj veri i uz puno uvažavanje, pa se obavezuju da će pokušati da sve eventualne sporove koji nastanu u toku realizacije reše mirnim putem. U slučaju potrebe, ugovaraju nadležnost Privrednog suda u Beogradu.

X

Ovaj Ugovor sačinjen je u dva **(2)** istovetna primerka od kojih obe ugovorne strane zadržavaju po jedan.

ZA POSREDNIKA

NALOGODAVAC

PRINCIPAL guarantees to **BROKER** that he/she is the exclusive owner of the subject real estate. Moreover, **PRINCIPAL** guarantees to **BROKER** that there are no Third Party rights on the subject real estate which diminish, restrict or exclude future acquired rights of the Lessee, except restrictions (if any) which are described in the preliminary Agreement and which **BROKER** is obliged to present to a potential Lessee.

VII

BROKER cannot guarantee successful lease of the subject real estate within a specified period to **PRINCIPAL**, especially when **PRINCIPAL** determines the lease price to be offered on the market to potential Lessees himself/herself. **PRINCIPAL** and **BROKER** agree that dynamics and speed of lease of the subject real estate may depend on factors which cannot be directly affected either by **PRINCIPAL** or **BROKER**.

VIII

This Agreement is concluded for an indefinite period of time and its validity ceases on the date of its termination. Each Party is entitled to terminate the Agreement. Termination period is 30 day and notice of termination has to be sent in written form or by e-mail in accordance with the Law on Electronic Commerce.

IX

Parties agree to act and cooperate in good faith and with full respect for each other during implementation of this Agreement and therefore they shall try to solve all possible disputes arising during implementation of the Agreement amicably. In case of a legal dispute, jurisdiction of the Commercial Court in Belgrade is agreed.

X

This Agreement is made in two **(2)** identical copies and each Party keeps one copy.

BROKER

PRINCIPAL

CONCEPT REAL ESTATE Doo Beograd

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